CCRB INVESTIGATIVE RECOMMENDATION

Investigator:	Team:	CCRB Case #:	☐ Force ☑ Discourt. ☐ U.S.
John Butler	Squad #05	201606943	☑ Abuse ☐ O.L. ☐ Injury

Incident Date(s)	Location of Incident:	18 Mo. SOL	Precinct:
Friday, 08/12/2016 5:00 PM	East 112th Street and 2nd Avenue	2/12/2018	23

Date/Time CV Reported	CV Reported At:	How CV Reported:	Date/Time Received at CCRB
Mon, 08/15/2016 9:32 AM	CCRB	In-person	Mon, 08/15/2016 9:32 AM

Complainant/Victim	Type	Home Address
[redacted]	[redacted]	[redacted]

Witness(es)	Home Address
[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Laborde	05867	954037	023 PCT
2. POM Daniel Gallante	12469	960567	023 PCT
3. POM Tyler Conner	21098	951630	023 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Daniel Gallante	Abuse: Police Officer Daniel Gallante stopped [redacted]	A . Exonerated
B . POM Tyler Conner	Abuse: Police Officer Tyler Conner stopped [redacted]	B . Exonerated
C . POM Michael Laborde	Abuse: Police Officer Michael Laborde stopped [redacted]	C . Exonerated
D . POM Michael Laborde	Abuse: Police Officer Michael Laborde questioned [redacted]	D . Exonerated
E . POM Michael Laborde	Abuse: Police Officer Michael Laborde frisked [redacted]	E . Exonerated
F . POM Michael Laborde	Discourtesy: Police Officer Michael Laborde spoke discourteously to [redacted]	F . Unsubstantiated
[redacted]	[redacted]	[redacted]
[redacted]	[redacted]	[redacted]
[redacted]	[redacted]	[redacted]
[redacted]	[redacted]	[redacted]

Case Summary

§ 87(2)(b) filed this complaint in-person with the CCRB on August 15, 2016.

On August 12, 2016, at East 112th Street and 2nd Avenue in Manhattan, § 87(2)(b) approached PO Tyler Conner and PO Karine John-Lewis of the 23rd Precinct, pointed out § 87(2)(b) and told the officers that § 87(2)(b) was following and harassing him. PO Michael Laborde and PO Daniel Gallante of the 23rd Precinct drove their RMP near the incident location, stopped the car, and approached § 87(2)(b) and the other officers. § 87(2)(b) told PO Laborde and PO Gallante about his complaint, and § 87(2)(b) pointed out § 87(2)(b) again for PO Laborde and PO Gallante. PO Laborde, PO Gallante, and PO Conner approached § 87(2)(b) and § 87(2)(b) entered the In-and-Out Deli on the corner of East 112th Street and 2nd Avenue. PO Laborde, PO Gallante, and PO Conner entered the deli and stopped § 87(2)(b) inside (**Allegation A, B, and C**). PO Laborde said, "You got something on you?" (**Allegation D**). PO Laborde then frisked § 87(2)(b) by feeling the outside of his clothing all over his body (**Allegation E**). The officers escorted § 87(2)(b) outside of the deli where PO Laborde prepared a complaint report for § 87(2)(b)s harassment allegation. § 87(2)(b) asked why the officers stopped him, and PO Laborde allegedly said, "Shut the fuck up. You're being stopped" (**Allegation F**). The officers allowed § 87(2)(b) to leave without arresting him or issuing him a summons (BR 01-02).

There is no video footage of this incident.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

§ 87(2)(b) rejected mediation § 87(2)(b) As of August 30, 2016, § 87(2)(b) had not filed a notice of claim in regards to this incident (BR 08).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

§ 87(2)(b) filed one prior CCRB complaint § 87(2)(b). § 87(2)(g)

PO Laborde has been a member of the NYPD for three years and has been the subject of two prior CCRB complaints involving eight allegations, none of which were substantiated. § 87(2)(g)

PO Gallante has been a member of the NYPD for less than one year, and this is his first CCRB complaint. This is PO Conner's first CCRB complaint in his four year tenure as an NYPD officer.

Potential Issues

Several customers inside the In-and-Out deli witnessed the initial stop, but they were not interviewed because they were unidentified. Efforts were made to obtain video footage from the In-and-Out Deli. The deli was contacted via phone on the same date that § 87(2)(b) filed his

complaint, but store employees stated that video footage was only saved for 24 hours and that video footage of the incident was already deleted.

§ 87(2)(b) § 87(2)(b) at the time of the incident. He provided a brief phone statement, but he was not interviewed because he only saw the officers approach § 87(2)(b) and did not witness any of the other allegations. § 87(2)(b) provided a brief phone statement, but he was not interviewed because he only saw the officers approach § 87(2)(b) and did not witness any other allegations.

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Daniel Gallante stopped § 87(2)(b)
Allegation B – Abuse of Authority: Police Officer Tyler Conner stopped § 87(2)(b)
Allegation C – Abuse of Authority: Police Officer Michael Laborde stopped § 87(2)(b)
Allegation D – Abuse of Authority: Police Officer Michael Laborde questioned § 87(2)(b)
Allegation E – Abuse of Authority: Police Officer Michael Laborde frisked § 87(2)(b)

It is undisputed that PO Gallante, PO Conner, and PO Laborde stopped § 87(2)(b) inside the In-and-Out Deli at East 112th Street and 2nd Avenue in Manhattan.

According to § 87(2)(b) he exited from a train station at East 110th Street and Lexington Avenue in Manhattan and immediately walked to the In-and-Out Deli to purchase cigarettes and a soda. While standing at the checkout counter, PO Gallante, PO Conner, and PO Laborde entered the store and stopped § 87(2)(b) Immediately upon being stopped, § 87(2)(b) alleged that PO Laborde asked, "You got something on you?" § 87(2)(b) alleged that PO Laborde then frisked him by feeling the outside of his clothing all over his body. § 87(2)(b) stated that he did not interact with anyone on his walk to the deli. § 87(2)(b) stated that he wore an orange shirt, black and gray Nike sweatpants, and black; orange; and gray Nike sneakers.

According to § 87(2)(b) a black male wearing an orange shirt followed him into a liquor store on East 115th Street and 2nd Avenue and approached very close to him. § 87(2)(b) knew this individual from a prior incident in which the man in question tried to shoot one of § 87(2)(b)s friends. § 87(2)(b) exited the liquor store and walked to East 112th Street and 2nd Avenue while the man in the orange shirt followed him. § 87(2)(b) approached PO Conner and PO John-Lewis and told them that someone was following him and threatening him. The suspect in question stood approximately 15 feet away, and § 87(2)(b) pointed at him and described him for the officers as a black male wearing an orange t-shirt. § 87(2)(b) stated that PO Laborde arrived on the scene shortly thereafter, and § 87(2)(b) explained the situation to PO Laborde and pointed out the suspect for him. § 87(2)(b) stated that he told the officers that the suspect has a gun at his house. The officers approached the suspect, who walked into the In-and-Out Deli, and the officers followed the suspect into the deli.

PO Conner confirmed that § 87(2)(b) approached him, complained that someone threatened to hurt him, and pointed out the suspect in question from 10-15 feet away (BR 04). PO Conner described the suspect as a black male wearing an orange shirt, and PO Conner viewed a picture of § 87(2)(b) during his CCRB interview and identified § 87(2)(b) as the suspected harasser. According to PO Conner, § 87(2)(b) told PO Conner that that § 87(2)(b) attempted to shoot § 87(2)(b)s friend five years prior. While PO Conner spoke with § 87(2)(b) PO Laborde and PO Gallante arrived on the scene (BR05-06). PO Conner stated that he told PO Laborde that he was looking for a black male wearing an orange shirt. According to PO Laborde,

§ 87(2)(b) then told him that § 87(2)(b) was following him and threatening him due to a prior incident in which § 87(2)(b) was involved in a physical altercation with § 87(2)(b) § 87(2) § 87(2)(b) saw § 87(2)(b) from a distance of approximately 30 feet away, pointed at him, and identified § 87(2)(b) as the suspected harasser for PO Laborde and PO Gallante. PO Laborde did not recall whether § 87(2)(b) said anything about § 87(2)(b) having a gun, but PO Gallante stated that § 87(2)(b) told the officers that § 87(2)(b) might have a gun on his person. PO Laborde viewed a picture of § 87(2)(b) during his CCRB interview, and PO Laborde recognized § 87(2)(b) as the suspected harasser pointed out by § 87(2)(b)

PO Laborde, PO Gallante, and PO Conner approached § 87(2)(b) with the intention to speak with him about the alleged harassment. All of the officers suspected that § 87(2)(b) had committed the crime of harassment based upon § 87(2)(b) s complaint. § 87(2)(b) walked into the In-and-Out Deli as the officers approached, and the officers stopped him in front of the checkout counter. Neither PO Laborde nor PO Conner recalled whether PO Laborde asked § 87(2) § 87(2)(b) if he had anything on him or whether PO Laborde frisked him.

PO Gallante stated that PO Laborde asked § 87(2)(b) if he had anything on his person immediately upon approaching him. PO Gallante stated that § 87(2)(b) told the officers that he did not have anything on him, and the officers then escorted § 87(2)(b) out of the deli. At that time, PO Gallante stated that PO Laborde frisked § 87(2)(b) waistband for weapons. The officers allowed § 87(2)(b) to leave without arresting him or issuing him a summons, and they stated that they did not arrest § 87(2)(b) because they did not witness the alleged harassment.

An officer must have reasonable suspicion to believe that a person has committed a crime in order to stop that person. People v. DeBour, 40 N.Y.2d 201 (1976). An officer must have founded suspicion of criminality to ask accusatory questions. People v. Hollman, 79 N.Y.2d 181 (1992). An officer must reasonable suspicion that he is in danger by virtue of the individual being armed in order to frisk that individual. People v. DeBour, 40 N.Y.2d 201 (1976). A statement from a victim or witness that a person might be carrying a weapon provides reasonable suspicion for an officer to frisk that person. Patrol Guide Procedure 212-11 (BR 09-11).

§ 87(2)(g) [redacted], it is recommended that **Allegations A, B, C, D, and E** be closed as **Exonerated.**

Allegation F – Discourtesy: Police Officer Michael Laborde spoke discourteously to § 87(2)(b) [redacted]

According to § 87(2)(b) PO Laborde took his identification after frisking him inside the deli, and the officers escorted § 87(2)(b) outside. PO Laborde then prepared a complaint report using § 87(2)(b) identification. § 87(2)(b) asked why the officers stopped him, and PO Laborde allegedly said, "Shut the fuck up. You're being stopped."

Neither § 87(2)(b) nor § 87(2)(b) heard what the officers said to § 87(2)(b) outside of the deli.

PO Laborde denied § 87(2)(b) allegation. Neither PO Conner nor PO Gallante recalled whether PO Laborde made the alleged discourteous comment toward § 87(2)(b)

§ 87(2)(g) Therefore, it is recommended that **Allegation F** be closed as **Unsubstantiated**.

§ 87(4-b), § 87(2)(g)

Squad:

Investigator: _____ _____ _____
Signature Print Date

Squad Leader: _____ _____ _____
Title/Signature Print Date

Reviewer: _____ _____ _____
Title/Signature Print Date